

# HOUSE . . . . . No. 806

---

## The Commonwealth of Massachusetts

PRESENTED BY:

*Simon Cataldo and Thomas W. Moakley*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to dark money in local government.

PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:                      | DATE ADDED:       |
|--------------------------|----------------------------------------|-------------------|
| <i>Simon Cataldo</i>     | <i>14th Middlesex</i>                  | <i>1/8/2025</i>   |
| <i>Thomas W. Moakley</i> | <i>Barnstable, Dukes and Nantucket</i> | <i>1/9/2025</i>   |
| <i>Hadley Luddy</i>      | <i>4th Barnstable</i>                  | <i>3/6/2025</i>   |
| <i>John R. Gaskey</i>    | <i>2nd Plymouth</i>                    | <i>10/24/2025</i> |

# HOUSE . . . . . No. 806

---

By Representatives Cataldo of Concord and Moakley of Falmouth, a petition (accompanied by bill, House, No. 806) of Simon Cataldo, Thomas W. Moakley and Hadley Luddy relative to disclosure and regulation of campaign expenditures and contributions for certain town meeting articles. Election Laws.

---

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to dark money in local government.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1                   SECTION 1. Chapter 55 of the General Laws, as appearing in the 2022 Official  
2 Edition, is hereby amended by inserting after section 22A the following section:-

3                   “SECTION 22B: Persons or corporations making contributions or expenditures to  
4 influence town warrant articles; filing reports with clerk; penalties.

5                   (a) Terms used in this section shall be construed as follows unless a contrary  
6 intention clearly appears:-

7                   “Article”, subjects to be acted upon at a town meeting as referenced in a warrant.

8                   “Town Meeting”, an annual town meeting or special town meeting called  
9 pursuant to chapter 39, section .9

10                  “Warrant”, the call of a town meeting pursuant to chapter 39, section 10.

11 (b) Any person, corporation, association, organization or other group of persons,  
12 which has given, paid, or expended, or promised to give, pay or expend, any money or other  
13 thing of value of \$1,000 or more in the aggregate in order to influence or affect an article on a  
14 warrant or the vote on any article at a town meeting, shall file reports on a form as prescribed by  
15 the director. The form shall include the date each expenditure was made or liability incurred; the  
16 purpose of the expenditure or liability; the amount of the expenditure; the full name and address  
17 of the person to whom each expenditure was made or liability incurred; the full name and  
18 address of the person, corporation, association, organization or the members of other group of  
19 persons by whom such expenditure was made or liability incurred; and for each gift, payment or  
20 contribution received to make the expenditure or incur the liability (1) the date of receipt; (2) the  
21 amount; and (3) the full name and address from whom each gift, payment or contribution was  
22 received.

23 (c) Such reports shall be filed with the town clerk as follows: (i) on the fifth day  
24 of each month for any contributions received or expenditures made in the preceding month  
25 through the last day of the preceding month; (ii) on the fifth day preceding a town meeting  
26 complete as to the seventh day preceding the town meeting; and (iii) as a final report, on the  
27 thirtieth day following a town meeting.

28 (d) This section shall not prohibit any officer, employee or agent of the  
29 commonwealth or its subdivisions from acting in their official capacity or private capacity  
30 relative to an article on a warrant.

31 (e) Violation of any provision of this section shall be punished by imprisonment  
32 for not more than one year, or by a fine of not more than \$1,000, or both.